AMENDMENT NO. 1 TO AGREEMENT WITH ALLIEDESPORTSENTERTAINMENTINC

This Amendment No. 1 (the "Amendment") is made as of March 1, 2024 between Alliedesportsentertainmentinc and the other party to the Agreement described below.

1. Background

The parties entered into an agreement (the "Agreement"). They now wish to amend it as set out below.

2. Amendment

The provision of the Agreement on limitation of liability is deleted in its entirety and replaced with the following:

> EXCEPT IN CASES OF GROSS NEGLIGENCE, WILLFUL MISCONDUCT OR FRAUD, INDEMNIFICATION CLAIMS UNDER SECTION 5 OR BREACHES OF SECTION 2 (TRADEMARKS), 8 (CONFIDENTIALITY), OR 9 (NO AGENCY RELATIONSHIP), IN NO EVENT SHALL EITHER PARTY OR ITS OFFICERS, DIRECTORS, OR EMPLOYEES BE LIABLE TO THE OTHER PARTY IN CONNECTION WITH THE SUBJECT MATTER HEREOF, FOR ANY SPECIAL, INDIRECT, CONSEQUENTIAL OR PUNITIVE DAMAGES OF ANY KIND, LOST PROFITS OR LOST REVENUE, WHETHER ARISING IN CONTRACT, TORT, NEGLIGENCE, STATUTE, OR OTHERWISE, EVEN IF ADVISED OF THE POSSIBILITY THEREOF. SUBJECT TO THE FOREGOING EXCEPTIONS, EACH PARTY'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

3. Effect of Amendment

Except as expressly amended by this Amendment, all terms of the Agreement remain in full force and effect. If this Amendment conflicts with the Agreement, this Amendment controls.

4. Effective Date

This Amendment takes effect on March 1, 2024.

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